

LAW & MOTION CALENDAR
TENTATIVE RULINGS

September 18, 2026

09:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

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- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
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#	CASE NAME	MATTER
1	Llauger vs. Light on Marketing, LLC 2025-01537013	Defendant’s Motion for Leave to File Cross Complaint Defendant Light on Marketing, LLC (“LOM”) moves for leave to file a cross-complaint. The motion is GRANTED IN PART AND DENIED IN PART. Specifically: 1. The motion is DENIED as to proposed cross-complainants Richard Folk and William Wilson. 2. The motion is DENIED as to all claims arising from the Wyndham and Diamond matters. 3. The motion is GRANTED as to LOM’s claims arising directly from Plaintiff Courtland Llauger’s alleged behavior on sales calls. Llauger’s request for judicial notice is GRANTED. LOM shall file a revised cross-complaint in compliance with this ruling by September 28, 2026. <u>GROUND’S FOR RULING</u> I. <u>Factual Background</u> A. <u>Complaint</u> This is an individual wage-and-hour action founded on misclassification. Per the complaint (ROA 2), Llauger was employed by LOM as a salesperson and paid on a commission-only basis. He was classified as exempt under the inside sales exemption. Llauger alleges he wasn’t paid more than 1.5 times the minimum wage as required for the exemption to apply. He further alleges he wasn’t separately paid for non-productive time. He brings

	standard wage-and-hour claims that are downstream of his alleged misclassification. B. <u>Proposed Cross-Complaint</u> The proposed cross-complaint (Slattery Decl. (ROA 38), Ex. A) alleges as follows: LOM is a company that provides timeshare contract resolution services. It is owned by Folk and Wilson, who were actively involved in management and operation. LOM employed Llauger as a salesperson. He was responsible for communicating directly with prospective customers, conducting sales and intake presentations, discussing customer accounts, and obtaining signed customer agreements. LOM provided detailed sales guidelines that Llauger and other salespersons were expected to follow when interacting with current and prospective customers. Llauger departed from those guidelines, causing LOM to lose current and prospective customers. Furthermore, timeshare developers such as Wyndham and Diamond brought claims against LOM, Folk, and Wilson arising from sales practices like those described in the cross-complaint. Folk and Wilson were individually sued by Wyndham and Diamond. Folk and Wilson contend that Plaintiff’s customer-facing conduct contributed to their individual exposure in the Wyndham and Diamond matters. C. <u>Judicially Noticeable Material</u> Before filing this suit, Llaguer filed a PAGA-only matter against LOM, Folk, and Wilson, No. 25-01504232. (RJN (ROA 50), Ex. 1.) The PAGA-only matter is also pending in this Court. The Wyndham litigation referred to in the proposed cross-complaint is <i>Wyndham Vacation Ownership, Inc. v. Slattery, Sobel & Decamp, LLP</i>, 11th Cir. No. 24-13025. (RJN, Ex. 2.) Defendants in that matter are Slattery, Sobel & Decamp, LLP; Pandora Servicing, LLC; Intermarketing Media, LLC; Wilson; and Folk. (<i>Ibid.</i>) LOM is not listed as a party to the Wyndham litigation. II. <u>Standard of Review</u> Cross-claims are either compulsory or permissive. A compulsory cross-claim involves a “related cause of action,” i.e., “a cause of action which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint.” (CCP § 426.10(c).) A compulsory cross-claim must be brought in the same action as the plaintiff’s complaint; otherwise, the defendant is barred from asserting it in the future. (CCP § 426.30(a).) A party who fails timely to file a compulsory cross-complaint may file for leave to do so. Courts are to grant such motions “upon such terms as may be just to the parties,” and leave to amend should be liberally granted to avoid forfeiture of causes of action. (CCP § 426.50.) A permissive cross-claim is “[a]ny cause of action [the defendant] has against any of the parties who filed the complaint or cross-complaint against him.” (CCP § 428.10.) Permissive cross-claims need not be related to the subject matter of the complaint in any way. They merely need to be claims the defendant has against the plaintiff. “When a person files a cross-complaint as authorized by Section 428.10, he may join any person as a cross-complainant or cross-defendant, whether or not such person is already a party to the action, if, had the cross-complaint been filed as an independent action, the joinder of that party would have been permitted by the statutes governing joinder of parties.” (CCP § 428.20.) To be properly joined as a cross-complainant, the person must assert a right to relief “arising out of the same transaction, occurrence, or series of transactions or occurrences” as the action, and there must be a “question of law or fact common to all these persons” in the action. (CCP § 378(a).)
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	III. <u>Discussion</u> A. <u>Wyndham and Diamond Litigation</u> LOM, Folk, and Wilson all bring claims arising from the Wyndham litigation and Diamond litigation. They allege that Llauger’s departure from LOM’s sales guidelines contributed to the damages claimed in those cases. LOM, as the party seeking leave to amend, bears the burden of proving leave would be proper. Here, judicially noticeable documents show LOM was not party to the Wyndham litigation. LOM never explains how it could have claims arising from litigation it was not party to. Moreover, LOM puts on no evidence that it was party to the Diamond litigation. Ordinarily, the Court would accept the cross-complaint’s allegation that LOM was involved in the Diamond litigation, but given its absence from the Wyndham litigation, more is required. Moreover, from the Court’s own research, it appears LOM is <i>not</i> party to the Diamond litigation, which appears to be <i>Diamond Resorts U.S. Collection Development, LLC v. Pandora Marketing, LLC</i>, C.D.Cal. No. CV 20-5486 DSF (ADSx). In the court’s ruling on the parties’ cross-motions for summary judgment, reported at 656 F.Supp.3d 1073, the defendants are listed as Pandora Marketing, LLC; Intermarketing Media, LLC; JL Sean Slattery; Carlsbad Law Group, LLP; Del Mar Law Group, LLP; and Slattery, Sobel, and Decamp, LLP. Llauger is alleged to be an employee of LOM, not of any other defendant in the Wyndham or Diamond matters. Absent proof that LOM was a party to either case, it cannot state a claim arising from damages awards against it in those cases. CCP § 428.10 allows a defendant to bring, as a permissive cross-claim, any cause of action <i>the defendant</i> has against the plaintiff. Perhaps other parties have causes of action against Llauger for actions allegedly giving rise to the Wyndham and Diamond matters, but LOM does not. And because LOM has no cause of action arising from the Wyndham and Diamond matters, Folk and Wilson’s claims arising from those matters are not properly before the Court. Because they are not currently defendants, they may only become cross-complainants if their causes of action arise from the same occurrences as the underlying action—i.e., from Llauger’s employment by LOM. Since LOM is not a party to the Wyndham and Diamond matters, Folk and Wilson’s claims arising from the Wyndham and Diamond matters do not arise from the same occurrences as this case. Leave to file a cross-complaint alleging claims arising from the Wyndham and Diamond matters is therefore denied. Moreover, the only damages Folk and Wilson claim to have sustained individually—rather than damages sustained by LOM, the company they own—arise from the Wyndham and Diamond matters. (See Slattery Decl., Ex. A, at ¶ 85 (“Folk and Wilson also sustained individual damages separate from LOM’s corporate damages . . . arising from claims asserted against them personally by timeshare developers.”).) This is the sole reference to Folk and Wilson’s individual damages in the proposed cross-complaint. Because they claim no other damages, and because the Wyndham and Diamond matters are not properly before the Court, leave to amend to name them as cross-complainants is denied. B. <u>Claims Directly Arising from Llauger’s Acts</u> This leaves LOM’s claims that arise directly from Llauger’s alleged acts, such as claims that his failure to follow contractually agreed-upon sales guidelines caused LOM to lose current and prospective customers. These are compulsory cross-claims arising from the same occurrences or series of occurrences as Llauger’s claims. As LOM points out in reply, Llauger has put his commission-based pay at issue. To the extent his departure from the sales guidelines resulted in canceled, charged back, or disputed customer transactions, that would bear on whether he had earned the commissions associated with those transactions.
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	Llauger argues leave should nevertheless be denied because LOM brings this motion in bad faith. The Court disagrees. First, citing <i>Gherman v. Colburn</i> (1977) 72 Cal.App.3d 544, Llauger argues the timing of the proposed cross-complaint shows bad faith. LOM’s counsel, however, declares that he only began to investigate Llauger’s employment after this suit was filed. During the course of that investigation, he and LOM discovered facts giving rise to affirmative claims against Llauger. (Slattery Decl. ¶¶ 3-4.) Llauger finds this suspect. He points out that the proposed cross-complaint turns on recordings of sales calls going back to 2020, yet LOM didn’t seek leave to file the cross-complaint until 2026—after Folk and Wilson were named as defendants in the companion PAGA matter. <i>Gherman</i> is unhelpful to Llauger. There, the plaintiffs sued the defendants for a joint venture gone sour. They brought both legal and equitable claims. The operative complaint was filed in October 1970. In August 1973, the plaintiffs dismissed their equitable claims for dissolution of a joint venture, an accounting, and appointment of a receiver. The case proceeded to a jury trial in October 1973. (<i>Gherman, supra</i>, 72 Cal.App.3d at p. 553.) On the first day of trial, the defendants moved for leave to file a cross-complaint for judicial dissolution and an accounting, i.e., the same equitable claims the plaintiffs had dismissed. The trial court denied the motion, and the appellate court affirmed. It explained that until the first day of trial, through years of litigation (and related cases), the defendants had taken the position that there was no joint venture in the first place, so there was nothing to judicially dissolve or take an accounting of. Only after the plaintiffs dismissed their claims for judicial dissolution and an accounting did the defendants seek to bring those claims back, and they did so on the first day of trial rather than promptly seeking leave when plaintiffs filed their dismissal. Moreover, the record reflected long-running, heated disputes about whether the case could be tried to a jury at all. The plaintiffs, who wanted a jury, dismissed their equitable claims. The defendants, eager to avoid a jury, tried to bring equitable claims back into the case on the first day of trial. The trial court could reasonably conclude this was “merely a tactical, strategic maneuver to deprive plaintiffs of a right to a jury trial.” (<i>Id.</i>, at pp. 558-559.) The timeline set forth by Llauger raises questions, but it is nothing so egregious as <i>Gherman</i>. The evidence he presents is insufficient for the Court to find bad faith on this ground. Next, Llauger argues that LOM’s continued employment of him for years after the alleged conduct at issue began is impossible to square with bringing its cross-claims now. The Court disagrees. Llauger erroneously assumes that LOM knew of his alleged conduct. LOM’s counsel testifies it was his investigation that uncovered the claims. Llauger also argues that because the cross-complaint relies on illustrative examples rather than specific instances of provable damages, it is “difficult to reconcile” with good faith. (Opp. at p. 13.) He cites no authority so holding. Finally, citing <i>Foot’s Transfer & Storage Co. v. Superior Court</i> (1980) 114 Cal.App.3d 897, Llauger contends leave should be denied because amendment will work a “substantial injustice” to him. (<i>Id.</i>, at p. 903.) The Court disagrees. Llauger complains that the proposed cross-complaint will impose an onerous burden on him in discovery and potentially expose him to a claim for punitive damages. He cites no authority for the proposition that this constitutes a “substantial injustice.” Furthermore, suppose leave to file a cross-complaint were denied. LOM could then file a separate, standalone action against Llauger, where it could impose the same discovery burdens on him and expose him to the same claim for punitive damages. Denying leave to file a cross-complaint will not keep him from facing his claimed substantial injustice.
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		IV. <u>Conclusion</u> The motion for leave to file a cross-complaint is granted as to LOM’s claims that directly arise from Llauger’s alleged conduct. It is denied as to all claims arising from the Wyndham and Diamond matters and all claims brought by Folk and Wilson.
2	Aerotek Affiliated Services, Inc. vs. Golledge 2022-01281583	Defendant’s Motion for Leave to File Cross Complaint Defendant Jobot, LLC moves for leave to file a cross-complaint. The motion is GRANTED. Jobot is to file and serve the proposed cross-complaint (which is attached to the amended notice of motion (ROA 355), with proposed exhibits filed across multiple entries in the register of actions) by no later than September 28, 2026. <u>GROUND FOR RULING</u> The parties agree the cross-complaint Jobot seeks to file is compulsory. (See Opp. (ROA 372) at p. 2.) Leave to file a compulsory cross-complaint “shall” be granted when a party fails timely to file one if the party seeking leave “acted in good faith.” (CCP § 426.50.) Leave to amend should be liberally granted “to avoid forfeiture of causes of action.” (<i>Ibid.</i>) This is a matter involving alleged employee-poaching by Jobot. As the 21st affirmative defense in its answer to the 2AC (ROA 164), Jobot alleges that Plaintiffs’ claims are based on restrictive covenants in employment agreements that violate California law and are therefore unenforceable. The proposed cross-complaint seeks a declaration that these covenants, in specific employment agreements attached to the cross-complaint, are unenforceable. That is, the proposed cross-complaint effectively converts the affirmative defense to an affirmative claim for relief. Counsel for Jobot declares that the number of employees at issue has changed over the course of the case. At one point, there were nearly 90 at issue. As of June 2026, Plaintiffs reduced the number of at-issue employees from nearly 90 to 30. (Heffner Decl. (included in ROA 355) ¶¶ 3-4.) At a recent status conference, Jobot’s counsel explained that Jobot had a particular interest in having the enforceability of the restrictive covenants litigated, and it was worried (based on how related cases in other jurisdictions have progressed) that the case might be resolved without addressing that issue. (See Scheiderer Decl. (ROA 374) Ex. A.) In its reply, Jobot argues that by bringing an affirmative cross-claim for declaratory relief, it can ensure the enforceability issue is litigated regardless of how Plaintiffs plan to proceed on their own claims. This is more than sufficient for the Court to conclude Jobot has acted in good faith by bringing this motion. In particular, the sudden downward shift in employees at issue in June 2026 suggests Plaintiffs might attempt to press for a resolution that never addresses enforceability. Jobot acted promptly upon realizing this possibility. Plaintiffs repeatedly argue that Jobot has proffered no reason at all for its delay in bringing this motion. They ignore counsel’s testimony about the June 2026 change in the number of employees at issue and counsel’s comments (in a transcript Plaintiffs submit to the Court) about how related cases have progressed. This case is nothing like <i>County of Los Angeles v. Quinn Emanuel Urquhart & Sullivan, LLP</i> (2025) 115 Cal.App.5th 489 or <i>Gherman v. Colburn</i> (1977) 72 Cal.App.3d 544, both cited by Plaintiffs. In <i>Quinn Emanuel</i>, the defendant waited to move for leave to file a compulsory cross-complaint until after summary judgment in the plaintiff’s favor had already been granted. (<i>Quinn Emanuel, supra</i>, 115 Cal.App.5th at p. 509.) In <i>Gherman</i>, the defendant moved for leave to file a compulsory cross-complaint on the first day of trial, and the record contained detailed evidence of bad faith. (<i>Gherman, supra</i>, 72 Cal.App.3d at pp. 558-560.) Here, there is no trial date on calendar, and